

## 24TRCV02871 24TRCV02871

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-07-16

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Case Number: 24TRCV02871 Hearing Date: July 16, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –  
SOUTHWEST DISTRICT

Honorable Amy N. Carter

Thursday,

July 16, 2026

Department M Calendar No.

PROCEEDINGS

The Evergreen Club, Inc. v. FT Holding, LLC, et al.

24TRCV02871

1. Liqing

Shang and Xianwei Hu's Motion to Quash Service of Summons and Complaint

TENTATIVE RULING

Liqing Shang and Xianwei Hu's Motion to  
Quash Service of Summons and Complaint is granted.

Background

Plaintiff

filed the Complaint on August 27, 2024. Plaintiff alleges the following facts.

Defendants executed and delivered to Wei Su, the

assignor, a written Promissory Note secured by a Deed of Trust, in the sum of \$7,000,000.00. Wei Su assigned his interest to Plaintiff. Defendants failed to perform their obligation on the Note. Plaintiff alleges the following causes of action: 1. Breach of Contract; 2. Breach of Covenant of Good Faith and Fair Dealing; 3. Common Count; 4. Money Lent; 5. Account Stated; 6. Judicial Foreclosure.

Request  
for Judicial Notice

Defendants'  
request for judicial notice is granted pursuant to Evidence Code 452(a)(c)(f) and (h).

Motion  
to Quash

Code  
Civ. Proc., § 413.10 states:

“Except  
as otherwise provided by statute, a summons shall be served on a person:

(a)  
Within this state, as provided in this chapter.

(b)  
Outside this state but within the United States, as provided in this chapter or as prescribed by the law of the place where the person is served.

(c)  
Outside the United States, as provided in this chapter or as directed by the court in which the action is pending, or, if the court before or after service finds that the service is reasonably calculated to give actual notice, as prescribed by the law of the place where the person is served or as directed by the foreign authority in response to a letter rogatory. These rules are subject to the provisions of the Convention on the “Service Abroad of Judicial and Extrajudicial Documents” in Civil or Commercial Matters (Hague Service Convention).

Code

Civ. Proc., § 415.10 states:

“A

summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served. Service of a summons in this manner is deemed complete at the time of such delivery. The date upon which personal delivery is made shall be entered on or affixed to the face of the copy of the summons at the time of its delivery. However, service of a summons without such date shall be valid and effective.”

Code

Civ. Proc., § 418.10 states, in relevant part: “(a) A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her.”

“Section

418.10, subdivision (a) (§ 418.10(a)), entitles a defendant to move to quash “on or before the last day of [the movant’s] time to plead or within any further time that the court may for good cause allow.” In re Marriage of Obrecht (2016) 245 Cal.App.4th 1, 16. “The notice shall designate, as the time for making the motion, a date not more than 30 days after filing of the notice. The notice shall be served in the same manner, and at the same times, prescribed by subdivision (b) of Section 1005. The service and filing of the notice shall extend the defendant’s time to plead until 15 days after service upon him or her of a written notice of entry of an order denying his or her motion, except that for good cause shown the court may extend the defendant’s time to plead for an additional period not exceeding 20 days.” Code Civ. Proc., § 418.10(b).

Pursuant

to CCP §§ 413.10 and 418.10, Defendants move to quash service of the summons and complaint on the following grounds: the summons and complaint were not properly served upon Defendants and the proof of service for Xianwei Hu is defective as it is not signed. (Notice of Motion, p. 2, lines 5-6).

A

review of the filed proofs of service indicates that moving Defendants were

purportedly personally served on March 12, 2026 at the following location: 15-2 East District, Dong San Huan Shi Bo Sheng Tai Cheng, Kunming, Yunnan China. In addition, as noted by moving parties, the proof of service as to Xianwei Hu is, in fact, not signed.

Both

Defendants provided declarations stating that they are residents and citizens of the People's Republic of China. (Decls., Xianwei Hu and Liqing Shang, ¶ 2). Defendants submitted authority to show that, for proper service of process in China, the serving party must comply with The Hague Convention. *Rockefeller Technology Investments (Asia) VII v. Changzhou SinoType Technology Co., Ltd.* (2020) 9 Cal.5th 125, 135-38 (holding that the parties waived formal compliance with the mandatory Hague Convention service requirements).

When

a Defendant challenges the Court's personal jurisdiction on the grounds of improper service of process the burden is on the Plaintiff to prove the facts of effective service." *Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413. Plaintiff must meet this burden by a preponderance of the evidence. See *Ziller Elec. Lab GmbH v. Superior Court* (1988) 206 Cal.App.3d 1222, 1232. Plaintiff has met its burden to establish facts of effective service.

"In

the absence of a voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish that court's personal jurisdiction over a defendant." *Dill v. Berquist Const. Co., Inc.* (1994) 24 Cal.App.4th 1426, 1439.

"A party cannot be properly joined unless served with the summons and complaint; notice does not substitute for proper service. Until statutory requirements are satisfied, the court lacks jurisdiction over a defendant." *Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808. "Service of a substantially defective summons does not confer jurisdiction over a party and will not support a default judgment.

Notice of the litigation does not confer personal jurisdiction absent substantial compliance with the statutory requirements for service of summons."

*MJS Enterprises, Inc. v. Super. Ct.*

(1984) 153 Cal.App.3d 555, 557 (internal citations omitted). "When a defendant challenges [the court's] jurisdiction by bringing a motion to quash, the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter

alia, the facts requisite to an effective service." *Dill v. Berquist Const. Co., Inc.* (1994) 24 Cal.App.4th 1426, 1439-40.

Plaintiff

filed no written opposition to this motion and failed to meet its burden to establish proper service of Defendants pursuant to the provisions set forth under The Hague Convention. In addition, Plaintiff submitted no facts to show that Defendants waived the requirement for service under The Hague Convention.

Therefore,

Defendants' Motion to Quash Service of Summons and Complaint is granted.

Defendants

are ordered to give notice of this ruling.